

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/20/2024 11:57 AM

Entry Number
8,021

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Beth McGowen

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

11/13/2023, 11/30/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Presiding Judge Beth McGowen was served TWO Statements of Disqualification against disqualified bribed crook ("judicial officer") Andrea Flint, filed 11/13/2023 and 11/30/2023.

Beth McGowen never addressed TWO Statements of Disqualification against Andrea Flint (11/13/2023 and 11/30/2023 - both attached. See evidence online in attached Evidence PDF)

Even worse - PAJAR Team confirmed that notice of selection of judge for hearing Disqualification matter was never sent to Judicial Council, and PAJAR has no records on disqualification of Flint (PAJAR Response attached).

Andrea Flint committed massive severe repetitive fraud on court in favor of Hanna Mars and her lawyer Nancy Roberts, suspected in bribing Flint in April 2023.

Harmful fraud orders, obtained by fraud on court committed by Flint during her assignment on case 22FL003144 during year 2023 include:

1. Transfer of custody over my son Max Mars from me, primary parent, to mentally unstable, socially dangerous schizophrenic mother, who was beating my son multiple times, including Max's birthday 11/23/2023 when act of domestic violence and child abuse was video recorded and filed with the court with SIXTH request to reconsider harmful custody orders. The same mother, who kidnapped my son from school in September 2022, and blocked all our contact, threatened me to abduct my son to Ukraine in times of war, and to "bury our son in Ukrainian soil - so you will never see him again". She has documented history of previous international child abduction in 2019-2020. But Flint refused to review any evidence and witness statements, and ordered transfer of custody over my son to mother - and no contact with my son to me (WHY???)
2. Massive financial fraud orders, obtained by fraud on court - including falsification of bank statements by Nancy Roberts, admission to evidence irrelevant bank statements from different years, removal of community loans from equalizing payment calculation, and falsification of bank statements with removal of significant community expenses to obtain favorable "equalizing payment" amount, obtained by fraud on court, committed by Andrea Flint and Nancy Roberts.
3. On 11/28/2023 Andrea Flint, while being in disqualification process since 11/13/2023, signed DVRO against me, prohibiting all contact with my son. Reason for that DVRO 11/28/2023 was that I greeted my son Max Mars with his birthday on 11/23/2023 - and Max was happy to see me, hugged me and kissed me. And after schizophrenic mother attacked him and tried to drag him inside house prohibiting Max to talk to me - Max fought back, and got out from mother's forcible clinch, rushing away from mother-abuser

to talk to me, his father, unlawfully removed from his life by orders of disqualified crook Andrea Flint. Max's mother filed DVRO right after Max's fight with her on his birthday - to completely prohibit Max all contact with me, because Max's smile irritates and triggers her aggression.

About year later, on 06/14/2024 I was arrested for violation of that DVRO, signed by disqualified bribed crook Andrea Flint on 11/28/2023. I was arrested for bringing donuts and hot chocolate to my son Max and his schizophrenic mother Hanna, after Max said that mother continues beating him, and is saying that I abandoned him and will never come to protect him from being beaten anymore.

I brought donuts, hot chocolate and EIGHTHS edition of Settlement Agreement - in hope to offer Hanna to settle divorce, and release Max from being beaten prisoner (he has no right to talk to me, see me, and has no phone to call me).

Beth McGowen was presented both Statements of Disqualification against Andrea Flint, including video recordings of massive fraud on court, committed by Andrea Flint.

I also included my Declaration for DVRO against mother-abuser with video evidence of child abuse committed by that mother on my son's birthday, together with pictures of bruises on my son's body, supervised reports and Hanna's messages, confirming that she kidnapped my son and blocked all our contact, even phone calls.

In statements of disqualification I respectfully requested Beth McGowen to OFFICIALLY DISQUALIFY ANDREA FLINT AND NULLIFY ALL HER ORDERS RETROACTIVELY BACK TO 09/13/2022, THE VERY BEGINNING OF THE CASE.

Beth McGowen not only refused to act accordingly to procedures in CCP 170.1, 170.3, 170.4, but even worse - she did not respond to TWO Statements of Disqualification at all.

As the result - harmful custody orders of disqualified crook Andrea Flint still endanger life of my son. I still not have any contact with my son (even phone calls) - in situation where aggressive schizophrenic Hanna Mars promised me to abduct Max to Ukraine and "bury our son in Ukrainian soil, so you will never see him again".

Even worse - on 06/14/2023 I was arrested for violation of VOID DVRO, signed by disqualified judicial officer Andrea Flint, who had no judicial power to sign such serious orders on 11/28/2023, after Statement of Disqualification against her was filed on 11/13/2023.

I kindly ask your help to obtain OFFICIAL CONFIRMATION THAT ANDREA FLINT IS OFFICIALLY DISQUALIFIED AND ALL HER ORDERS ARE NULLIFIED RETROACTIVELY BACK TO 09/13/2023.

I also kindly ask you to discipline Beth McGowen, and make her obey procedures in CCP 170.1, 170.3, 170.4 and Code of Judicial Ethics which prescribes judges who cannot be impartial to be recused from the case - which means, that there is nothing bad if Beth McGowen will perform her direct responsibilities, will disqualify judge who has impermissible conflict of interest, and will transfer case 22FL003144 to another department.

Again, it's not about "punishing" judges - judges have absolute immunity.

This is about restoring integrity of Judicial process - and making repetitive bribery of judges hopefully less reasonable, or at least more expensive for criminals like Hanna Mars and Nancy Roberts, due to faster churn of bribed judges.

Though, with THREE DISQUALIFIED CROOKS STEPHEN LOWNEY, ANDREA FLINT, AND JAMES TOWERY, disqualified during ONE SINGLE YEAR, from ONE SINGLE case 22FL003144 - seems like bribery is such a routine everyday activity in Santa Clara County Superior Court, that there is no hope for restoring integrity of the court process, and court lost credibility completely.

Refusal of Presiding Judge to OFFICIALLY DISQUALIFY crooks ("judicial officers") simply demonstrates her official position to support and endorse UNCONTROLLABLE OUTBURST OF ORGANIZED CRIME AND BRIBERY IN SANTA CLARA COUNTY SUPERIOR COURT.

I kindly ask your help to discipline Beth McGowen, and ensure that regardless of her official denial, OFFICIAL CONFIRMATION OF DISQUALIFICATION AND NULLIFICATION OF ALL ORDERS OF DISQUALIFIED CROOKS ("JUDICIAL OFFICERS") ANDREA FLINT, STEPHEN LOWNEY AND JAMES TOWERY - WILL BE OFFICIALLY FILED WITH THE COURT AND SENT TO ME.

Appreciate your prompt attention to this urgent matter.
Thank you

File Upload

PAJAR Response - Flint.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf

Evidence for Complaint against Beth McGowen 2023-11-13 and 2023-11-30.pdf